

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YONATHAN ARARSO,	)	Case Number: FDI-24-800717
	)	
Petitioner	)	Hearing Date: July 16, 2026
	)	
VS.	)	Hearing Time: 9:00 AM
	)	
YANIT MEGBEYANEH,	)	Department: 404
	)	
Respondent	)	Presiding: AI MORI
	)	

REQUEST FOR ORDER: BIFURCATION AND TERMINATION OF STATUS
TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Yonathan Ararso and Respondent Yanit Megbeyaneh married on 1/16/2015 and separated on 7/1/2021, for a marriage of 6 years and 6 months. The parties have two minor children, Mattios (DOB: 7/31/2016, age 9) and Caleb (DOB: 1/27/2018, age 8).
- 2) On 8/15/2025, the parties submitted a proposed stipulated Status-Only Judgment for the Court’s review. The proposed Status-Only Judgment contains the following language: Paragraph 4(f): “Prior to entry of judgment terminating status, both of the following shall occur: i) The Petitioner’s retirement or pension plan shall be joined as a party to the proceeding; and ii) if applicable, an order pursuant to Section 2610 shall be entered with reference to the defined benefit or similar plan pending the ultimate resolution of the distribution of benefits under the employee benefit plan.”
- 3) On 12/30/2025, the proposed Status-Only Judgment was rejected because no retirement plans had been joined to this proceeding (as referenced in Paragraph 4(f) of the proposed Status-Only Judgment).

- 4) On 1/29/2026, the parties submitted an FL-372 form regarding the joinder of a University of California Defined Contribution Plan (UC DCP).
- 5) On 2/11/2026, the Court requested additional pleadings necessary to join UC DCP as a party to the proceeding.
- 6) On 4/22/2026, a Stipulation and Order was entered which memorializes the parties' agreements for the parties to file an amended Petition and an amended Response.
- 7) No additional pleadings were filed or submitted following the Court's 2/11/2026 letter requesting additional pleadings for joinder and the 4/22/2026 Stipulation and Order.
- 8) Now on for hearing is Petitioner's Request for Order filed 5/15/2026 asking the Court to bifurcate and terminate marital status. Petitioner writes, "I no longer wish to be married to Respondent... I urge the court to grant my Request for Order." In the FL-315 form attached to Petitioner's Request for Order, under the prompt "All pension or retirement plans in which the community has an interest are listed below or on attachment 1e(2)," Petitioner states: "None subject to joinder per FL-318-INFO."
- 9) There is no Proof of Service on file demonstrating service of Petitioner's 5/15/2026 Request for Order, nor did Respondent file a Responsive Declaration.

B. Findings and Order

- 1) The hearing on Petitioner's Request for Order filed 5/15/2026 is hereby continued to DATE at 9:00 AM in Dept. 404.
- 2) If there is a community property interest in a University of California Defined Contribution Plan (UC DCP), the plan must be joined as a party to this proceeding before the Court may bifurcate and terminate marital status under Family Code section 2337(d)(1). As a governmental plan, UC DCP is not subject to ERISA's anti-joinder provisions.
- 3) The Court also needs additional information from Petitioner whether there is a community interest in a corresponding University of California Retirement Plan (UCRP).
- 4) No later than DATE, Petitioner shall file and serve a declaration which explains his position regarding whether the community has any interest in a UC DCP or UCRP retirement plan. Petitioner shall provide the dates of employment that either he or Respondent worked for the UC system and contributed to the UC DCP and / or UCRP retirement plans.

- 1 5) If Petitioner contends there is a community interest in a UC DCP or UCRP retirement plan, no
2 later than DATE, Petitioner shall file and serve all pleadings necessary for the UC DCP and
3 UCRP retirement plans to be joined as a party to this proceeding per Family Code section
4 2337(d)(1).
- 5 6) By the deadlines set forth in the Code of Civil Procedure, Petitioner must have the following
6 pleadings served on Respondent by a third-party age 18 or older:
 - 7 a. Petitioner's Request for Order filed 5/15/2026
 - 8 b. Petitioner's declaration regarding whether the community has an interest in a UC DCP or
9 UCRP retirement plan
 - 10 c. Blank Responsive Declaration
 - 11 d. Blank FL-315 form
 - 12 e. Tentative Ruling Instructions
- 13 7) Pleadings for joinder of the UC DCP and UCRP retirement plans
- 14 8) Findings and Order After Hearing for the 7/16/2026 hearing date (which will be mailed to
15 Petitioner)
- 16 9) Petitioner must file a Proof of Service evidencing compliance with the orders above at least 5
17 calendar days prior to the next hearing date.
- 18 10) Petitioner is strongly encouraged to contact the ACCESS Center for assistance. Information for
19 contacting the ACCESS Center can be found here: [https://sf.courts.ca.gov/access-legal-self-help-](https://sf.courts.ca.gov/access-legal-self-help-center)
20 center.
- 21 11) The Court will prepare the Findings and Order After Hearing.